



CHAPTER ccxlii.

An Act to authorise the Trustees of the Clyde Navigation to construct quays wharves and basins at Yorkhill and Merklands and river walls tramways and other works to make further provision with respect to the storage of goods tolls and rates and the borrowing of additional money and for other purposes.

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[15th August 1904.]

WHEREAS by the Clyde Navigation Consolidation Act 1858 (herein-after called "the Act of 1858") the Trustees of the Clyde Navigation (herein-after called "the Trustees") were incorporated and it was by that Act enacted that the undertaking of the Trustees should among other things include the deepening straightening widening and improving the navigable channel of the River Clyde and the construction and maintenance of quays wharves docks and other works within the limits of the jurisdiction of the Trustees as defined by the said Act and the Trustees were further empowered to do all works and things necessary for that purpose :

And whereas further powers were conferred upon the Trustees by subsequent Acts (which Acts and the Act of 1858 are herein-after called "the Clyde Navigation Acts") :

And whereas the trade and commerce of the harbour of Glasgow and the number and size of the vessels resorting thereto have increased and are increasing and it is expedient that the Trustees should provide further accommodation to meet the present and prospective demands of such trade and commerce and that they should with this view be authorised to construct the works herein-after described to levy rates and tolls for the use thereof and to vary the rates which the Trustees are

A.D. 1904. — authorised to levy by the Clyde Navigation Acts and also that the other objects and purposes in this Act mentioned should be carried into effect :

And whereas it is expedient that the Trustees should be authorised to borrow a further sum of money for the purposes of this Act and for the general purposes of their undertaking :

And whereas maps plans and sections describing the lines situation and levels of the works authorised by this Act and plans of the lands which will be taken for the purposes of this Act and of the undertaking of the Trustees and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the respective principal sheriff clerks of the counties of Lanark Renfrew and Dumbarton at their respective offices in Glasgow Paisley and Greenock and Dumbarton and are herein-after respectively referred to as the deposited plans sections and books of reference :

And whereas the purposes aforesaid cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title.

1. This Act may be cited as the Clyde Navigation Act 1904.

Citation of Acts.

2. This Act and the Clyde Navigation Acts 1858 to 1899 may be cited as the Clyde Navigation Acts 1858 to 1904.

PART I.

PRELIMINARY.

Division of Act into parts.

3. This Act is divided into parts as follows :—

Part I.—Preliminary.

Part II.—New Works.

Part III.—Dock Tramways.

Part IV.—Storage of Goods.

Part V.—Rates.

Part VI.—Financial.

Part VII.—Miscellaneous.

4. The following Acts and portions of Acts are (except where expressly varied by this Act) incorporated with and form part of this Act (that is to say) :—

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Incorporation of general Acts.

The Lands Clauses Acts ;

The provisions of the Railways Clauses Consolidation (Scotland) Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and with respect to the crossing of roads or other interferences therewith ;

The Harbours Docks and Piers Clauses Act 1847 with the exception of the sections with respect to lifeboats with respect to keeping a tide and weather gauge and with respect to buoys lighthouses and beacons and also with the exception of sections 25 26 and 30 and the said Harbours Docks and Piers Clauses Act 1847 with the aforesaid exceptions shall apply to the works by this Act authorised :

And in construing the said Acts as incorporated with this Act the expressions “ the company ” “ the undertakers ” and “ the railway ” shall respectively mean the Trustees and the works by this Act authorised.

5. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction :

Interpretation.

And in this Act—

“ The Clyde Navigation Acts ” means the Clyde Navigation Acts 1858 to 1899 ;

“ The Act of 1858 ” means the Clyde Navigation Consolidation Act 1858 ;

“ The Act of 1864 ” means the Clyde Navigation (Glasgow Harbour Tramways) Act 1864 ;

“ The Act of 1868 ” means the Clyde Navigation (Amendment) Act 1868 ;

“ The Act of 1870 ” means the Clyde Navigation (Stobcross Dock) Act 1870 ;

“ The Act of 1883 ” means the Clyde Navigation Act 1883 ;

“ The Act of 1884 ” means the Clyde Navigation Act 1884 ;

“ The Act of 1899 ” means the Clyde Navigation Act 1899 ;

“ The Trustees ” means the Trustees of the Clyde Navigation incorporated by the Act of 1858 ;

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"The harbour of Glasgow" and "the harbour" mean the harbour of Glasgow as defined by this Act;

"The sheriff" means the sheriff of the county of Lanark Renfrew or Dumbarton within those respective counties as the case may be and includes his substitutes;

"The corporation" means the corporation of the city of Glasgow;

"Mechanical power" includes steam electrical and every other motive power not being animal power;

"Engine" includes motor.

PART II.

NEW WORKS.

Power to
execute
works.

6. Subject to the provisions of this Act the Trustees may make and maintain in the lines and according to the levels shown on the deposited plans and sections the works herein-after described and the works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited books of reference as may be required for those purposes (that is to say):—

- (1) A Quay or Wharf (No. 1) with three basins connected therewith on the lands of Yorkhill and Kelvinhaugh commencing at a point on the east side of Ferry Road thirty-nine yards or thereabouts from the junction of the east side of that road with the north bank of the River Clyde and terminating at the south-west corner of Kelvinhaugh Wharf:

The basins being—

- (A) A basin commencing at a point on the Quay or Wharf (No. 1) forty-three yards or thereabouts south-eastward from the said point of commencement of the Quay or Wharf (No. 1) and extending thence north-eastward for a distance of two hundred and thirty yards or thereabouts and being sixty-seven yards or thereabouts wide;
- (B) A basin commencing at a point on the Quay or Wharf (No. 1) two hundred and seven yards or thereabouts south-eastward from the said point of commencement of the Quay or Wharf (No. 1) and extending thence north-eastward for a distance of one hundred and fifty-five yards or thereabouts and being sixty yards or thereabouts wide;

- (c) A basin commencing at a point on the Quay or Wharf (No. 1) four hundred and eighty yards or thereabouts south-eastward from the said point of commencement of the Quay or Wharf (No. 1) and extending thence eastward for a distance of two hundred and twenty yards or thereabouts and being fifty yards or thereabouts wide :
- (2) A Diversion (No. 1) of Pointhouse Road commencing by a junction with Pointhouse Road at a point therein ninety yards or thereabouts eastward from the east side of Sandyford Street and terminating by a junction with Sandyford Street thirty-five yards or thereabouts southward from the south side of the bridge carrying the North British Railway over that street :
- (3) A Diversion (No. 2) of Pointhouse Road commencing by a junction with Pointhouse Road at a point therein sixty-six yards or thereabouts westward from the east side of Sandyford Street and terminating by a junction with Ferry Road fifty yards or thereabouts south-westward from the south-west side of the bridge carrying the North British Railway over Ferry Road :
- (4) A Quay or Wharf (No. 2) on the lands of Merklands commencing at a point twenty-six yards or thereabouts northward from and at right angles to the top of the north wall of the River Clyde at a point on that wall forty-five yards or thereabouts eastward from the centre line of James Street and terminating at the point of intersection of the top of the said north wall with the line of the west side of Sawmill Road :
- (5) A River Wall (No. 1) on the south side of the River Clyde commencing on the south wall of the River Clyde at the north-west corner of the engineering and shipbuilding works of Lobnitz and Company Limited and terminating on the east bank of the Black Cart Water at a point two hundred and sixteen yards or thereabouts southward from the junction of the said south wall of the River Clyde and the east river wall of the Black Cart Water :
- (6) A River Wall (No. 2) on the south side of the River Clyde commencing on the west bank of the Black Cart Water at a point one hundred and twenty yards

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or thereabouts measured at right angles to the east wall of the Black Cart Water at the point hereinbefore described at the termination of River Wall (No. 1) and terminating on the east side of Algies Gullet at a point thereon twenty-two yards or thereabouts south-westward from the mile post indicating six and three-quarter miles from Glasgow Bridge :

- (7) A River Wall (No. 3) on the south side of the River Clyde commencing at a point on the west side of Algies Gullet forty yards or thereabouts westward from the said mile post indicating six and three-quarter miles from Glasgow Bridge and terminating at the west end of Newshot Isle at a point forty yards or thereabouts southward from the termination of the south wall of the River Clyde at the west end of Newshot Isle :
- (8) A River Wall (No. 4) on the south side of the River Clyde commencing at a point on the east side of Park Quay fifty yards or thereabouts southward from the north-west corner of that quay and terminating at a point on the south wall of the River Clyde one hundred and fifty-two yards or thereabouts westward from Rashielee Light Tower :
- (9) A River Wall (No. 6) on the north side of the River Clyde commencing at a point on the north wall of the River Clyde forty-six yards or thereabouts westward from the westmost dolphin of the basin at the Dalmuir sewage works of the corporation and terminating at a point on the said north wall twenty yards or thereabouts east of the western boundary of the land at Dalmuir belonging to the corporation :
- (10) A Dock Tramway (No. 1) a double line two furlongs 5·82 chains in length commencing by a junction with the low level sidings of the North British Railway and Caledonian Railway situate to the north of Pointhouse Road at a point twelve yards or thereabouts southward from and at right angles to the south retaining wall of the incline leading from the high level sidings to the low level sidings measuring from a point on the said retaining wall sixty-five yards or thereabouts westward from the east end of that wall proceeding thence westward into and along the south side of

Pointhouse Road and terminating at a point thirty-five yards or thereabouts westward from the line of the east side of Sandyford Street and thirty-three yards or thereabouts south-westward from the south-west corner of the bridge carrying the North British Railway over that street.

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The dock tramway will be constructed on a gauge of four feet eight and a half inches and engines carriages and trucks adapted for use on railways may be run thereon.

7. The Trustees may stop up the portions of Pointhouse Road and Sandyford Street shown upon the deposited plans to be stopped up but such stopping up shall not take place until the sheriff shall have certified that the diversions of Pointhouse Road by this Act authorised have been completed to his satisfaction and are open for public use. Before applying to the sheriff for his certificate the Trustees shall give to the corporation seven days' notice in writing of their intention to apply for the same. As from the date of the said certificate all rights of way over or along the portions of Pointhouse Road and Sandyford Street so stopped up shall be extinguished and the Trustees may appropriate and use for the purposes of their undertaking the sites of the portions of road stopped up. The register of public streets so far as relating to Pointhouse Road and Sandyford Street shall thereafter be altered so as to be in conformity with the provisions of this Act.

Stopping up portions of Pointhouse Road and Sandyford Street.

8. For the protection of the corporation of the city of Glasgow as such and as acting in execution of the several public and local and personal Acts by which any powers jurisdictions or authorities are conferred on them (in this section called "the corporation" and "the city" respectively) the following provisions shall (unless otherwise agreed upon) have effect and be binding on the Trustees (that is to say):—

For protection of corporation of Glasgow.

(1) Notwithstanding anything contained in this Act the Trustees shall not stop up temporarily or permanently any road or street within the city other than the portions of Pointhouse Road and Sandyford Street shown upon the deposited plans to be stopped up:

(2) Before the Trustees commence any works the execution of which would in any way interfere with or affect any of the roads streets lanes footpaths or public places in the city or which would interfere with or affect the sewers drains gas or water pipes electric or telephone wires or other works belonging to the

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corporation they shall give to the corporation notice thereof in writing accompanied by plans sections working drawings and specifications showing the manner in which the said works are to be executed and also showing the means to be employed by the Trustees not only for protecting the said roads streets lanes footpaths or public places sewers drains gas or water pipes electric or telephone wires or other works during the operations of the Trustees but for making good any injury or damage to or interference with the same respectively which plans sections working drawings and specifications shall be subject to the reasonable approval of the corporation :

- (3) The Trustees shall in the construction of Dock Tramway No. 1 by this Act authorised at all times leave a sufficient width of the carriageway of Pointhouse Road and Sandyford Street to accommodate the vehicular traffic on that road and street :
- (4) The Trustees shall carry out the construction of the said dock tramway and the diversions of Pointhouse Road at the sight and to the reasonable satisfaction of the master of works of the city The Trustees shall pave the carriageway of the portion of Pointhouse Road included in the said diversions with square-dressed granite setts on concrete foundations according to a specification to be reasonably approved of by the master of works and shall also form a granolithic foot pavement along the north side of that road as diverted of a width to be approved of by the master of works and shall make reasonable provision for surface and other drainage all to his satisfaction Subject to the provisions of subsection 6 of the section of this Act of which the marginal note is "For protection of Caledonian and North British Railway Companies" the Trustees shall maintain the foot pavement along the said Diversion No. 2 :
- (5) The Trustees shall lay such sewers gas and water pipes and electric or telephone wires or other works as may be rendered necessary by the stopping up of Pointhouse Road and Sandyford Street under this Act and such works shall be carried out according to plans to be approved of by the corporation and at their sight and to their reasonable satisfaction :

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(6) From and after the construction of the said dock tramway the Trustees shall maintain in good and sufficient repair to the satisfaction of the master of works the whole width of the carriageway of Pointhouse Road for the whole length of that tramway :

(7) Any of the manholes or other works in connexion with the corporation's intercepting sewer laid under Pointhouse Road which may be interfered with by the construction of the said dock tramway shall be altered as directed by and at the sight and to the reasonable satisfaction of the city engineer of the corporation and the construction of the said dock tramway and of the diversions of Pointhouse Road by this Act authorised so far as affecting the said intercepting sewer shall be carried out at the sight and to the satisfaction of the said city engineer :

(8) The Trustees shall not construct any works on Pointhouse Road or Sandyford Street other than those shown on the deposited plans :

(9) The provisions of sections 18 to 23 both inclusive of the Railways Clauses Consolidation (Scotland) Act 1845 shall for the purposes of this section and so far as not inconsistent with any special provisions herein contained apply to all mains pipes cables feeders wires and tubes and any apparatus connected therewith used for the purposes of telephones and for the supply of electricity in the same manner and to the same extent as they apply to all mains pipes and apparatus used for the supply of water and gas :

(10) The following provisions shall have effect as regards the River Wall No. 6 to be constructed on the land of the corporation :—

(A) The Trustees shall not deviate further inland than the line of the River Wall No. 6 as delineated on the deposited plans nor construct the said river wall to a greater height than as shown on the deposited sections except with the consent in writing of the corporation ;

(B) The Trustees shall not construct on lands acquired under this Act for the purpose of the said river wall any buildings or erections other than light towers beacons dolphins tide gauges mile posts

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and the like except with the consent in writing of the corporation and any such works shall not be placed further inland than the line of the river wall and the same shall from time to time be removed by the Trustees to other suitable positions when such removal is necessary for the purpose of giving the corporation or their disponees or tenants direct access to the river ;

(c) The said river wall shall be similar to the river walls at present existing on the River Clyde and the Trustees shall restore and provide efficient outlets for any present or future drains which may be interfered with in making or maintaining the said river wall ;

(d) In the event of the Corporation selling feuing letting or using the land abutting on the said river wall for a purpose requiring direct communication with the river after the Trustees shall have acquired under the powers of this Act the land in front of the same but before the construction of the said river wall thereon the Trustees shall upon receiving written notice from the corporation construct with all reasonable despatch so much of the said river wall and remove so much of the soil between the new and existing river wall as may be necessary in order to provide at least the same depth of water ex adverso of the said river wall as existed ex adverso of the present river wall ;

(e) All existing rights of river frontage and other rights of the corporation as owner of lands of which any part is taken or acquired for the purposes of the said river wall and widening of the river opposite thereto shall attach and apply to their remaining lands and to the new or altered frontage to the river in the same manner and to the same effect as such rights attached and applied to the said lands and the frontage to the river at the passing of this Act :

- (11) The Trustees shall pay to the corporation any additional expense they may incur in executing any new works or in maintaining any existing works which is occasioned by the existence of the said dock tramway :

- (12) Any difference between the corporation and the Trustees arising out of any of the provisions of this section shall be referred to the determination of an arbiter to be mutually agreed upon or failing such agreement to be appointed on the application of the Trustees or of the corporation by the Board of Trade and such arbiter shall have power to determine the matter in difference The costs of and incidental to the reference shall be paid by the Trustees. A.D. 1904.

9. For the protection of the provost magistrates and town council of the burgh of Partick (in this section referred to as "the town council" and "the burgh" respectively) the following provisions shall unless otherwise agreed upon have effect (that is to say):— For protection of burgh of Partick.

- (1) Notwithstanding anything in this Act contained the Trustees shall not under the powers of this Act be entitled to alter or interfere with (except as herein-after provided as to Sawmill Road) or stop up temporarily or permanently any streets highways roads lanes paths or passages or any works belonging to the town council within the burgh excepting the Balshagray Sewer herein-after referred to or to exercise the powers of deviation conferred on them in such a way as to interfere with or affect such streets highways roads lanes paths or passages or works before referred to Provided that nothing herein contained shall limit or affect the powers of the Trustees under the Act of 1899 to stop up the right of way in the burgh specified in that Act:

- (2) Without prejudice to any statutory rights and powers possessed by the town council the Trustees shall give all necessary access and facilities to the town council or others duly authorised by them for the repair renewal or enlargement of the sewer leading from the foot of Balshagray Avenue to the River Clyde so far as such sewer is laid in along or through the portions of the lands of Merklands numbered 5 7 and 11 on the deposited plans and the town council in the exercise of their powers shall not be liable for any loss or damage which may be occasioned to the Trustees or their property or for any stoppages of traffic thereon by such operations of the town council

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unless such damage or stoppage shall have been caused by the default or neglect of the town council. Provided that (1) the Trustees shall so construct their works as not to interfere with the continuous flow of sewage in the Balshagray Sewer and shall construct at the sight and to the reasonable satisfaction of the town council's burgh surveyor a new and efficient outfall therefor in the Quay or Wharf No. 2 by this Act authorised (2) if the construction of any works by this Act authorised causes additional expense in the repair renewal or enlargement of the Balshagray Sewer the Trustees shall pay to the town council such additional expense (3) the Trustees shall have power at any time to call upon the town council to construct at the expense of the Trustees a new sewer in South Street and James Street in substitution for the Balshagray Sewer so far as situated on the Trustees' ground and on the completion of such new sewer the portion of the Balshagray Sewer for which the new sewer is to be substituted shall become the property of the Trustees and (4) the town council shall unless in cases of emergency give to the Trustees reasonable notice before beginning the repair renewal or enlargement of the Balshagray Sewer and the Trustees shall thereupon have the option of calling upon the town council to construct a new sewer in South Street and James Street in substitution for the Balshagray Sewer and in the event of the Trustees exercising such option the Trustees shall pay to the town council the additional expense involved in the construction of such new sewer as compared with the expense involved in the repair renewal or enlargement of the Balshagray Sewer and the portion of the Balshagray Sewer for which the new sewer is to be substituted shall become the property of the Trustees :

- (3) The Trustees shall be bound forthwith to widen Sawmill Road on the west side thereof to the extent and according to the lines shown on the plans signed by William Murray Alston the Trustees' engineer and John Bryce the town council's burgh surveyor and according to levels to be adjusted by them and the Trustees shall provide and maintain all necessary surface drainage for the west side of the said road and

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make a granolithic footpath of six feet in breadth along the west side of the said road with suitable gutter :

- (4) Nothing in this Act contained shall alter diminish or affect the existing jurisdiction and authority of the town council or of the magistrates of the burgh in respect of the Trustees' undertaking or any part thereof situated within the burgh and nothing in this Act contained shall be construed to extend or apply sections 154 155 and 156 of the Glasgow Police Act 1866 to any works or lands of the Trustees within the burgh or to extend or apply the Glasgow Police Acts to any part of the harbour situate within the burgh :
- (5) The power by this Act conferred on the Trustees to make byelaws for regulating vehicular and other traffic on roads belonging to them shall not except with the consent of the town council affect any public street in the burgh or any private street in the burgh not wholly the property of the Trustees :
- (6) If any difference shall arise between the Trustees and the town council as to the meaning of this section or any matter arising out of the same such difference shall be referred to an arbiter to be appointed by the sheriff of Lanarkshire on the application of either party.

10. For the protection of the Caledonian Railway Company and the North British Railway Company (in this section called "the railway companies") the following provisions shall unless otherwise agreed have effect (that is to say) :—

For protec-
tion of Cale-
donian and
North British
Railway
Companies.

- (1) Notwithstanding anything shown on the deposited plans the Diversion No. 1 of Pointhouse Road by this Act authorised shall be constructed in accordance only with the plan signed in triplicate by Sir Henry Aubrey Fletcher Baronet the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred one copy of which plan has been deposited in the Private Bill Office of the House of Commons one copy in the Office of the Clerk of the Parliaments House of Lords and one copy in the office of the Trustees Dock Tramway No. 1 so far as constructed on the diversion of Pointhouse Road shall be constructed on the said diversion as shown on the said plan :

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- (2) The Trustees shall be entitled to take or acquire compulsorily under the powers of this Act for the purposes of the Diversion No. 1 of Pointhouse Road and of the said tramway the portion of land extending to five hundred square yards or thereby belonging to the railway companies delineated and coloured green on the said plan and the purchase money or compensation payable by the Trustees to the railway companies in respect of the said portion of land and of injury to the remaining land and works of the railway companies shall be fixed and determined in terms of the Lands Clauses Consolidation (Scotland) Act 1845 :
- (3) The Trustees shall not take or acquire compulsorily for the purposes of the said tramway by this Act authorised any other or additional lands or property of the railway companies or in which the railway companies are interested but they shall be entitled to acquire a servitude over and upon the property belonging to the railway companies for the purpose of forming a junction of the said tramway with the low level sidings belonging to the railway companies situated to the north of Pointhouse Road In the formation of the said junction there shall be as little interference as possible with the property of the railway companies and the said low level sidings and traffic thereon The plan of the junction of the said tramway with the said low level sidings including the exact point of junction shall be agreed upon between the Trustees and the railway companies or failing agreement shall be determined as herein-after provided and the said junction shall be constructed and laid by the railway companies and the whole expense of the same shall be paid by the Trustees to the railway companies The Trustees shall make compensation to the railway companies under the Lands Clauses Consolidation (Scotland) Acts in respect of any such servitude acquired by them under this Act :
- (4) The junction of the said tramway shall hereafter so long as it remains be maintained by the railway companies and the whole cost of such maintenance as from time to time determined by the engineer of the railway companies for the time being shall be repaid to them by the Trustees Should the junction cease to be

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required or other arrangements be made for the working of the tramway at any future time the junction shall be removed by the railway companies and all expense incurred in connexion therewith shall be repaid to them by the Trustees :

- (5) The Trustees shall be bound to relieve the railway companies of the whole cost and expense of and connected with the making of the said Diversion No. 1 of Pointhouse Road by this Act authorised and of the roadways and footpaths thereof and sewers therein :
- (6) The Trustees shall except as herein-after provided be bound to relieve the North British Railway Company of the whole cost and expense of and connected with the making maintaining repairing altering renewing draining paving or lighting of the said Diversion No. 2 of Pointhouse Road and of the roadways and footpaths thereof and sewers therein or otherwise in connexion with the said road as diverted Provided that if and when the North British Railway Company shall make any access or accesses to the said diversion of Pointhouse Road from the land belonging to them abutting on the same or any portion or portions thereof they shall thereupon come under all the ordinary obligations of frontagers in respect of the portion or portions of the said land in connexion with which such access or accesses are made :
- (7) If any difference shall arise between the Trustees and the railway companies or either of them as to the meaning of this section or any matter arising out of the same such difference shall be referred to an engineer to be appointed by the Board of Trade on the application of either party.

11. The Trustees may remove and discontinue the quay or wharf known as Partick Wharf which is situate adjacent to the Quay or Wharf No. 1 by this Act authorised.

Discon-
tinuation of
Partick
Wharf.

12. Subject to the provisions of this Act the diversions of Pointhouse Road by this Act authorised shall for all purposes form part of that road and when completed and opened for public use shall be managed and except the foot pavements thereof be maintained by the corporation.

Diversions
of Point-
house Road
to form part
of that road.

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Power to
make sub-
sidiary works
and to divert
River Clyde
into new
works.

13. Subject to the provisions of this Act the Trustees may make and maintain on in over under or in connexion with the works herein-before described or any of them all necessary and convenient railways tramways sidings rails junctions stations bridges crossings turntables roads accesses approaches gates retaining and other walls sheds buildings offices warehouses stores bins hoppers weighing machines timber ponds graving docks slipways shipping places sluices jetties quays wharves wharf walls river walls sheet and other piling landing stages staiths cranes coal tips hydraulic and other lifts hoists drops dolphins buoys moorings pillars perches beacons lighthouses stairs sewers drains watercourses culverts lines pipes and other works machinery and conveniences or any of them and they may also divert the waters of the River Clyde into the basins by this Act authorised.

Power to
alter roads
&c.

14. For the purposes and during the execution of the works by this Act authorised and in maintaining the same the Trustees may subject to the provisions of this Act use break up or cross over or under alter or stop up temporarily or permanently any streets highways roads lanes paths quays bridges railways tramways canals passages sewers drains watercourses mill leads or mill dams sluices gas pipes and water pipes and electric or telephonic apparatus in any of the lands shown on the deposited plans and specified in the deposited books of reference and which they may find it expedient for any of those purposes so to interfere with providing when possible a proper substitute before interrupting the traffic on any such street highway railway or tramway or the flow of water gas sewage or electricity in any such sewer drain watercourse canal or pipe or apparatus and making full compensation to all persons injuriously affected by the exercise of the powers of this section. Provided that nothing in this section shall extend to or authorise any interference with electric apparatus or other property of His Majesty's Postmaster-General. Provided also that nothing in this section shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Act 1882 to which the provisions of section 15 of the said Act apply except in accordance with the provisions of that section.

Power to
deviate.

15. Subject to the provisions of this Act the Trustees in constructing the works by this Act authorised may deviate laterally from the lines thereof delineated on the deposited plans to any extent not exceeding the limits of deviation defined on the

said plans and may deviate vertically from the levels of the said works as defined on the deposited sections to any extent not exceeding six feet. Provided that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade. A.D. 1904.

16. The Trustees may from time to time deepen dredge scour cleanse widen alter and improve the River Clyde at and adjoining the said works and they may also use and appropriate any materials raised or removed in so doing. Power to dredge and deepen river works.

17. All existing rights of river frontage and other rights of the owners of lands of which any part is taken or acquired for the purposes of such river walls Nos. 1 2 3 4 and 6 by this Act authorised and widening of the river opposite thereto shall attach and apply to the remaining lands and the new or altered frontage of the river in the same manner and to the same effect as such rights attached and applied to the said lands and the frontage of the river at the passing of this Act. Provision as to rights of river frontage &c.

18. Any existing public rights of way on the lands and property to be acquired for the purposes of the river walls Nos. 1 2 3 4 and 6 by this Act authorised shall continue to exist along the land forming the new or altered bank of the river adjacent to the said river walls to the extent to which such rights of way exist along the existing river walls. Provision as to rights of way along river.

19. Every person who wilfully obstructs any person acting under the authority of the Trustees in setting out the lines of the works by this Act authorised or who pulls up or removes any poles or stakes driven into the ground for the purpose of setting out the lines of the said works or defaces injures or destroys the same or any part thereof shall be guilty of an offence and shall for every such offence be liable to a penalty not exceeding five pounds which may be recovered by the Trustees under the Summary Jurisdiction (Scotland) Acts. Penalty for obstructing works.

20. The powers of the Trustees for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act. Period for compulsory purchase of land.

21. In addition to the lands acquired and held or to be acquired and held by the Trustees under the powers of the Clyde Navigation Acts and this Act the Trustees may by agreement purchase any quantity of land not exceeding one hundred and fifty acres for the purposes of the Clyde Navigation Acts and Additional land for purposes of undertaking.

A.D. 1904. this Act but nothing in this Act or the Clyde Navigation Acts shall exempt the Trustees from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any lands acquired under the powers of this section.

Power to
take servi-
tudes &c. by
agreement.

22. Persons empowered by the Lands Clauses Acts to sell and convey or release land may if they think fit subject to the provisions of those Acts and of this Act grant to the Trustees any servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such land and the provisions of the said Acts with respect to land and feu duties or ground annuals as far as the same are applicable in this behalf shall extend and apply to such servitudes rights and privileges as aforesaid respectively.

Works to
form part of
'Trustees'
undertaking.

23. Subject to the provisions of this Act the works by this Act authorised other than the diversions of Pointhouse Road shall for all purposes including the power to levy tolls rates rents dues and duties be and be deemed to be part of the undertaking of the Trustees and the whole powers rights and authorities of the Trustees shall apply to and may be exercised therein and with respect thereto as fully and freely in all respects as in any other part of the undertaking.

PART III.

DOCK TRAMWAYS.

Passengers
not to be
conveyed on
tramways.

24. Notwithstanding anything contained in the Clyde Navigation Acts or this Act the dock tramway by this Act authorised and the existing tramways of the Trustees (in this part of this Act called "the tramways") shall not be used for the conveyance of passengers.

Provisions
as to motive
power.

25. Section 11 (Locomotive engines &c. not to be used on tramways) of the Act of 1864 and the provisions of section 11 (Tramway connecting lines may be made across road or street) of the Act of 1870 so far only as that section prohibits traffic being carried on tramway crossings otherwise than by horse haulage and prohibits more than two waggons being conveyed at the same time over any tramway crossing and sections 38 and 39 relating to motive power on the tramways of the Act of 1883 and the Second Schedule to that Act are hereby repealed The

carriages used on the tramways may be moved by animal power or by mechanical power. A.D. 1904.

26. In the event of any of the tramways being worked by electricity the following provisions shall have effect :—

For protection of
Postmaster-General.

(1) The Trustees shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by His Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein. Any difference which arises between the Postmaster-General and the Trustees as to compliance with this subsection shall be determined by arbitration :

(2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Trustees of their electric lines and works or by the working of the undertaking of the Trustees the Trustees shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :

(3) Before any electric line is laid down or any act or work for working any of the tramways aforesaid by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Trustees or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Trustees and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work. Any difference which arises between the Postmaster-General and the Trustees as to any requirement so made shall be determined by arbitration :

A.D. 1904.
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- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Trustees is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Trustees' works or to the working of their undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the Trustees enter any of the Trustees' works for the purpose of inspecting the Trustees' plant and the working of the same and the Trustees shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Trustees pursuant to the Board of Trade regulations :
- (5) In the event of any contravention of or wilful non-compliance with this section by the Trustees or their agents the Trustees shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :
- (6) Provided that nothing in this section shall subject the Trustees or their agents to a fine under this section if they satisfy the court having cognisance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :
- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :

- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Act :
- (9) The expression " electric line " has the same meaning in this section as in the Electric Lighting Act 1882 :
- (10) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbiter appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the corporation or their agents were a company within the meaning of that Act :
- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Trustees by indictment action or otherwise in relation to any of the matters aforesaid :
- (12) In this section the expression " the Trustees " includes their lessees and any person owning working or running carriages on any of the tramways of the Trustees.

27. The following provisions shall apply to the use of electrical power under this Act unless such power is entirely contained in and carried along with the carriages :—

Special provisions as to use of electrical power.

- (1) The Trustees shall employ either insulated returns or uninsulated metallic returns of low resistance :
- (2) The Trustees shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus :
- (3) The electrical power shall be used only in accordance with regulations to be prescribed by the Board of

A.D. 1904.

Trade (in this section referred to as "the Board of Trade regulations") and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return :

- (4) The Trustees shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Trustees either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking :
- (5) At the expiration of two years from the passing of this Act the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents :
- (6) If any difference arises between the Trustees and any other party with respect to anything herein-before in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbiter to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbiter as the case may be :

- (7) The expression "Trustees" in this section shall include A.D. 1904.
 licencees and any person owning working or running
 carriages over any tramway of the Trustees.

28. Subject to the provisions of the section of this Act of which the marginal note is "Passengers not to be conveyed on tramways" the Trustees may levy and recover in respect of traffic on the tramways the tolls authorised by section 50 of the Act of 1883 as if the tramways had been authorised by that Act and sections 55 and 62 of that Act and section 44 of the Act of 1899 shall apply to the tramways and to the tolls and charges to be taken in respect of the use thereof in all respects as if they had been the tramway authorised by the Act of 1883.

Tolls for use
 of dock tram-
 ways and
 application
 of certain
 sections of
 Acts of 1883
 and 1899.

PART IV.

STORAGE OF GOODS.

29. The Trustees may use any of their sheds yards or buildings and may provide and erect sheds yards or buildings for the purpose of warehousing goods and fit up the same with all necessary appliances and plant including refrigerating machinery and appliances and may as storekeepers render such services as are usually rendered by such persons on payment by the owners of the goods warehoused or deposited or the persons in charge of such goods of such reasonable charges as shall be fixed by the Trustees or on such special terms and conditions as may be prescribed by the Trustees.

Trustees
 may act
 as store-
 keepers.

30. The Trustees may if they think fit at the request of any person warehousing or depositing any goods in any warehouse or on or in any of the quays wharves or yards of the Trustees or entitled to any goods so warehoused or deposited issue and deliver to him a certificate of such goods having been so warehoused or deposited.

Trustees
 may issue
 certificates
 of deposited
 goods.

31. All certificates and other documents relating to goods in the custody of the Trustees if signed and issued by any officer duly authorised in that behalf shall be effectual in law and binding on the Trustees and all other parties interested without any other signature and without any seal.

Certificates
 &c. may be
 signed by
 officers.

32. The owner or person having the charge of any goods warehoused stored or yarded shall before the removal of such goods from the warehouses stores or yards of the Trustees and at such date or dates as shall be fixed by the Trustees pay such rates

As to pay-
 ment of
 rates on
 warehoused
 goods.

A.D. 1904. and charges as shall be then due and payable on such goods and in case such owner or person shall fail or neglect to pay such rates and charges the Trustees or such person as shall be appointed by them shall have the same powers for recovery thereof as are conferred upon them for the recovery of rates on goods by the Harbours Docks and Piers Clauses Act 1847.

Provisions
as to ware-
houses being
used as
bonding
warehouses.

33.—(1) The Trustees may at their discretion use as a bonding warehouse any of their warehouses sheds or other buildings or any part thereof which may be duly approved by the Commissioners of Customs or of Inland Revenue when such are intended for the deposit of goods liable to the duties of customs or excise.

(2) The Trustees may if required give to the Commissioners of Customs or of Inland Revenue general security by bond under their common seal for payment of duties on or for the due exportation of goods deposited in their warehouses sheds and other buildings.

(3) The Trustees may give such bonds or securities under their common seal as may be required by the laws for the time being in force relating to bonding warehouses and bonding yards.

(4) All warehouses belonging to the Trustees in which goods prohibited to be used for home consumption or liable to the duties of customs or excise may be deposited shall if required by the Commissioners of Customs or of Inland Revenue be secured in such manner as shall be approved by such commissioners.

PART V.

RATES.

Special tolls
and rates for
ferries.

34. The Trustees may vary the tolls and rates authorised to be levied by them in respect of the use of their existing or authorised ferries for vehicles conveying goods that have on the same day been removed from the Trustees' quays sheds warehouses or yards or that are intended to be laid down thereat on the same day for shipment and for the same vehicles returning empty without also varying the same in respect of the use of those ferries by other traffic Provided always that such rates shall not in any case be less than one penny for each vehicle used for carrying merchandise whether loaded or empty including the driver thereof and two horses and shall not in any case exceed the maximum amounts authorised by the Clyde Navigation Acts

Provided further that such rates shall at all times be charged equally to all persons in respect of the like services in the like circumstances. A.D. 1904.
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35. The Trustees may levy and recover in respect of the use of any bins hoists tips storage sidings shoots staiths hoppers and other conveniences such reasonable rates as shall be fixed by the Trustees. Rates for
hoists &c.

36. In addition to the powers conferred on the Trustees by section 26 (Quay rent for goods) and section 27 (Payment of quay rent before removal of goods) of the Act of 1868 the Trustees may remove or cause to be removed any goods remaining on or in any of their quays wharves yards sheds roads and streets within the undertaking after the expiry of the periods prescribed or to be prescribed by the Trustees to their own or any other public warehouse or store and such removal shall be carried out at the expense and risk of the owner consignor shipper consignee and purchaser or any of them. Provided always that notwithstanding such removal or placing in store such goods shall be liable to a general lien for the cost of removal and for any rates duties quay rents storage and other charges payable to the Trustees by such owner consignor shipper consignee and purchaser or any of them and the powers of the Trustees for preventing the removal of goods until such cost of removal and such rates duties quay rents storage and other charges have been paid shall extend and apply to any goods removed or placed in store under the provisions of this section. Further
powers as to
removal of
goods from
quays.

PART VI.

FINANCIAL.

37. The Trustees may apply to the purposes of this Act to which capital is properly applicable any moneys which they now have in their hands or which they have power to raise by virtue of the Clyde Navigation Acts and which may not be required for the purposes to which they are by any such Acts made specially applicable. Power to
apply corpo-
rate funds to
purposes of
Act.

38. The Trustees may borrow on the security of their undertaking and of the tolls and rates leviable by them under the authority of the Clyde Navigation Acts and this Act any sums of money not exceeding in the whole six hundred thousand pounds in addition to the sum of seven million two hundred and fifty thousand pounds which they are by the Clyde Navigation Acts authorised to borrow and if after having borrowed the said Power to
borrow
money.

A.D. 1904. — sum of six hundred thousand pounds or any part thereof the Trustees shall pay off the same except by the sinking fund or the proceeds of the sale of any land or any grassum or premium taken on any lease or feu disposition they may again borrow the like sum on the same security.

Provisions of certain of Clyde Navigation Acts applied to borrowing powers of this Act.

39. The provisions contained in sections 47 to 70 of the Act of 1858 and sections 27 28 and 29 of the Act of 1864 respectively relating to the form of securities as amended by this Act shall extend and apply to the money by this Act authorised to be borrowed as if such money had formed part of the money by the Clyde Navigation Acts or any of them authorised to be borrowed.

Application of money borrowed.

40. All money borrowed by the Trustees under the authority of this Act and all other money in the nature of capital received by the Trustees shall be applied only in defraying the cost of the lands to be acquired and the works to be constructed under the authority of this Act and to other purposes of the Clyde Navigation Acts and this Act to which capital is properly applicable and all tolls rates and charges levied by the Trustees under the authority of this Act and all other moneys in the nature of revenue received by the Trustees shall be applied in or towards carrying into execution the purposes of the Clyde Navigation Acts and of this Act and the undertakings thereby authorised to which revenue is properly applicable and to no other purpose whatsoever.

Extending to this Act certain provisions of Clyde Navigation Act 1883.

41. Sections 47 and 48 of the Act of 1883 in reference to the sinking fund to be provided by the Trustees shall extend and apply to the money by this Act authorised to be borrowed as if such money had formed part of the money authorised to be borrowed by the Clyde Navigation Acts or any of them.

Transfer of funded debt.

42. Notwithstanding anything contained in section 67 of the Act of 1858 the interest of a holder of funded debt or any part of such interest may be transferred by a transfer in the common or usual form in use on any stock exchange in the United Kingdom.

PART VII.

MISCELLANEOUS.

Definition of Glasgow Harbour.

43. Section 74 of the Act of 1858 section 32 of the Act of 1883 and section 12 of the Act of 1884 are hereby repealed and in lieu thereof the following provisions shall have effect The harbour

of Glasgow shall for all purposes (including the rating purposes of the Trustees) mean and include the River Clyde between Albert Bridge (formerly Hutchesontown Bridge) and a line drawn across the River Clyde in line with the western termination of the Shieldhall Wharf as authorised by and delineated on the plans deposited relative to the Act of 1884 and also the whole docks quays wharves piers yards buildings erections and other works and conveniences belonging to the Trustees constructed or which may hereafter be constructed or used in connexion therewith within the said limits for the purposes of their undertaking and the byelaws rules and regulations of the Trustees are hereby extended and shall apply to the harbour as in this section defined. A.D. 1904.
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44. Notwithstanding anything contained in the Harbours Docks and Piers Clauses Act 1847 the Trustees may lease any lands belonging to them for such periods for such consideration and on such terms and conditions as they may think fit. Leasing of
land.

45. In addition to the power to make byelaws conferred upon the Trustees by the Clyde Navigation Acts the Trustees may make such byelaws as they think fit for regulating vehicular and other traffic within upon and along the roads streets quays wharves yards and bridges belonging to the Trustees Provided always that such byelaws shall before coming into operation be confirmed by the sheriff of the county of Lanark whose confirmation shall be sufficient for all purposes. Power to
make bye-
laws for re-
gulation of
traffic &c.

46. The Trustees shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Secretary for Scotland ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied. Restriction
on taking
houses of
labouring
class.

If the Trustees acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions of this section they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Secretary for Scotland by action in the Court of Session and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if it think fit reduce such penalty.

For the purposes of this section the expression "house" means any house or part of a house occupied as a separate

A.D. 1904. dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any such persons who may be residing with them.

Power to make agreements for purposes of Act.

47. The Trustees may from time to time make and carry out agreements with the corporation and the town council of the burgh of Partick the county councils of Lanark and Renfrew and any district committees of those councils and with the proprietors of lands to be taken or injuriously affected under the powers of this Act and any other persons with reference to the carrying out of any purposes of this Act not herein specially provided for.

Confirmation of agreement between Lord Blythswood and Trustees.

48. The agreement between Archibald Campbell Campbell of Blythswood Baron Blythswood of Blythswood of the first part and the Trustees of the second part as set forth in the First Schedule to this Act is hereby confirmed and made binding upon the parties thereto respectively and shall be carried into effect by them accordingly.

Confirming agreement with W. A. Baird.

49. The agreement contained in the Second Schedule to this Act is hereby confirmed and made binding on the parties thereto.

Confirming agreement with G. W. Henderson.

50. The agreement contained in the Third Schedule to this Act is hereby confirmed and made binding on the parties thereto.

Correction of errors &c. in deposited plans and books of reference.

51. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited books of reference the Trustees after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to the sheriff for the correction thereof and if it appear to such sheriff that the omission misstatement or wrong description arose from mistake he shall certify the same accordingly and he shall in his certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the principal sheriff clerks of the counties of Lanark Renfrew and Dumbarton as the case may be and with the clerks to the parish councils of the several parishes and with the town clerk of the city of

Glasgow as the case may be in which the lands affected thereby are situate and shall be kept by such sheriff clerk or clerks to the parish councils and town clerk respectively with the other documents to which the same relates and thereupon the deposited plans and books of reference shall be deemed to be corrected according to such certificate and the Trustees may enter upon take and use the lands and execute the works in accordance with such certificate.

A.D. 1904.

52. Nothing herein contained shall authorise the Trustees to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to the King's most Excellent Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent such Commissioners and such Board are hereby respectively authorised to give) neither shall anything herein contained extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or enjoyed or exerciseable by the King's Majesty.

Saving
rights of
Crown.

53. The Trustees shall at or near the works below high-water mark hereby authorised during the whole time of the constructing altering or extending the same exhibit and keep burning at their own expense every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade from time to time require or approve.

Lights on
works during
construction.

If the Trustees fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

54. The Trustees shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade

Works below
high-water
mark not to
be com-
menced with-
out consent
of Board of
Trade.

A.D. 1904. — may approve such approval being signified as last aforesaid and where any such work may have been constructed the Trustees shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consent or approval. If any such work be commenced or completed contrary to the provisions of this Act the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Trustees and the amount of such costs and charges shall be a debt due from the Trustees to the Crown and shall be recoverable as a Crown debt or summarily.

Survey of
works by
Board of
Trade.

55. If at any time the Board of Trade deem it expedient for the purposes of this Act to order a survey and examination of a work constructed by the Trustees on in over through or across tidal lands or tidal waters or of the intended site of any such work the Trustees shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Trustees to the Crown and be recoverable as a Crown debt or summarily.

Abatement
of work
abandoned
or decayed.

56. If a work constructed by the Trustees under the powers of this Act on in over through or across tidal lands or tidal waters is abandoned or suffered to fall into decay the Board of Trade may abate and remove the work or any part of it and restore the site thereof to its former condition at the expense of the Trustees and the amount of such expense shall be a debt due from the Trustees to the Crown and be recoverable as a Crown debt or summarily.

Provision as
to Merchant
Shipping
Acts &c.

57. Subject to the provisions of this Act nothing contained in this Act shall exempt the harbour or the Trustees from the provisions of the Merchant Shipping Acts or of any general Act relating to harbours or to dues on shipping or on goods carried in ships now in force or which may be passed during the present or any future session of Parliament or from any future revision or alteration under the authority of Parliament of the rates and tolls authorised by the Clyde Navigation Acts or this Act.

Costs of Act.

58. All costs charges and expenses of and incident to the preparing for obtaining passing and confirming of this Act or otherwise in relation thereto shall be paid by the Trustees out of the rates to be levied or the moneys authorised to be borrowed by them.

SCHEDULES referred to in the foregoing Act.

A.D. 1904.

THE FIRST SCHEDULE.

MINUTE of AGREEMENT between THE RIGHT HONOURABLE ARCHIBALD CAMPBELL CAMPBELL of Blythwood BARON BLYTHSWOOD of Blythwood in the County of Renfrew and a Baronet the Institute of Entail in possession of the Estate of Blythwood in the County of Renfrew (herein-after called "the first party") of the first part and THE TRUSTEES OF THE CLYDE NAVIGATION incorporated under the Clyde Navigation Consolidation Act 1858 (herein-after called "the second parties") of the second part.

WHEREAS the second parties are promoting in the present session of Parliament a Bill for an Act which proceeds on the narrative inter alia that the trade and commerce of the harbour of Glasgow and the number and size of the vessels resorting thereto have increased and are increasing and it is expedient that the Trustees should provide further accommodation to meet the present and prospective demands of such trade and commerce and that they should with this view be authorised to widen the River Clyde and to construct inter alia the river walls after mentioned viz. A River Wall (No. 1) on the south side of the River Clyde commencing on the south wall of the River Clyde at the north-west corner of the engineering and shipbuilding works of Lobnitz and Company Limited and terminating on the east bank of the Black Cart Water at a point two hundred and sixteen yards or thereabouts southward from the junction of the said south wall of the River Clyde and the east river wall of the Black Cart Water a River Wall (No. 2) on the south side of the River Clyde commencing on the west bank of the Black Cart Water at a point one hundred and twenty yards or thereabouts measured at right angles to the east wall of the Black Cart Water at the point hereinbefore described at the termination of River Wall (No. 1) and terminating on the east side of Algies Gullet at a point thereon twenty-two yards or thereabouts south-westward from the mile post indicating six and three-quarter miles from Glasgow Bridge and a River Wall (No. 3) on the south side of the River Clyde commencing at a point on the west side of Algies Gullet forty yards or thereabouts westward from the said mile post indicating six and three-quarter miles from Glasgow Bridge and terminating at the west end of Newshot Isle at a point forty yards or thereabouts southward from the termination of the south wall of the River Clyde at the west end of Newshot Isle And whereas the first party is the institute of entail in possession of certain lands upon which the said River Walls (Nos. 1 2 and 3) are proposed

A.D. 1904. — to be constructed And whereas he has agreed to sell and the second parties have agreed to purchase these lands And whereas the first party has agreed on the terms and conditions herein-after written to withdraw his opposition to the said Bill and to consent to the same being passed into an Act so far as he is concerned Therefore the parties have agreed and do hereby agree and bind and oblige themselves as follows viz. :—

First The first party agrees to sell to the second parties and the second parties agree to purchase for the said River Walls (Nos. 1 2 and 3) and for the widening of the River Clyde All and whole those three pieces of ground forming part of the first party's lands and estate of Blythswood situated partly in the burgh of Renfrew and partly in the parish of Inchinnan and all in the county of Renfrew shown in red colour on the plan docquetted and subscribed as relative hereto viz. (first) All and whole that piece of ground containing four acres and seventy-five decimal parts of an acre or thereby situated on the south bank of the River Clyde and on the east bank of the River Cart extending from the junction of these rivers eastwards to the property of Lobnitz and Company Limited which piece of ground is numbered I. on the said plan (second) All and whole that piece of ground containing five acres and seventy-five decimal parts of an acre or thereby situated on the west bank of the River Cart and the south bank of the River Clyde between the River Cart and Algies Gullet which strip of ground is numbered II. on the said plan and (third) All and whole that piece of ground containing thirteen acres or thereby situated on the south bank of the River Clyde between the eastern and western extremities of the Newshot Isle which strip of ground is numbered III. on the said plan but under reservation to the first party and his heirs and successors in the said estate of Blythswood of the whole mines metals and minerals other than clay sand or stone in and under the said three pieces of ground.

Second The second parties shall pay to the first party or his foresaids for the piece of ground first above described a sum to be calculated at the rate of seven hundred and fifty pounds sterling per acre and for the pieces of ground second and third above described a sum to be calculated at the rate of five hundred pounds sterling per acre and that free of all feu duty and other encumbrances affecting the said three pieces of ground.

Third The sums payable under this agreement to the first party or his foresaids as the price or prices of the said three pieces of ground shall include the whole claims for compensation in respect of severance and all other damages and injury to the amenity of the said first party's lands and estate but shall not include any claims competent to the tenants of the subjects of which the pieces of ground second and third above described and numbered II. and III. on the said plan form part for all losses sustained by them in any manner of way whatever and which tenants' claims the second parties shall be bound to settle and so free and relieve the first party and his foresaids thereof The rent payable to the first party or his foresaids for the farms of which the

pieces of ground second and third above described form part shall be rateably apportioned between the first party or his foresaids and the second parties from and after the date of the notice to treat after mentioned. A.D. 1904.

Fourth For the protection of the rights of the first party and his foresaids as riparian owners the following provisions shall have effect viz. (A) The second parties shall not deviate further inland than the line of the new River Walls (Nos. 1 2 and 3) as delineated on the deposited plans relative to the said Bill nor construct the new river walls to a greater height than as shown on the deposited sections except with the consent in writing of the first party (B) The second parties shall not construct on the three pieces of ground acquired under this agreement any buildings or erections other than light towers beacons dolphins tide gauges mile posts and the like except with the consent in writing of the first party or his foresaids and any such works shall not be placed further inland than the line of the new river walls as delineated on the deposited plans and the same shall from time to time be removed by the second parties to other suitable positions when such removal is necessary for the purpose of giving the first party or his foresaids or their disponees or tenants direct access to the river (C) The said new river walls shall be similar to those at present existing on the River Clyde and the second parties shall restore and provide efficient outlets for any drains which may be interfered with in making or maintaining the new river walls (D) In the event of the first party or his foresaids using selling feuing or letting any portion of his remaining lands abutting on the said three pieces of ground for a purpose requiring direct communication with the river after the second parties shall have acquired the said three pieces of ground under this agreement but before the construction of the new river walls thereon the second parties shall upon receiving written notice from the first party or his foresaids construct with all reasonable despatch so much of the new river walls and remove so much of the soil between the new river walls and the existing river channel as may be necessary in order to provide at least the same depth of water ex adverso of the new river walls as existed ex adverso of the former river walls (E) After the second parties shall have acquired the said three pieces of ground under this agreement but before the construction of the new river walls the first party shall enjoy a right of wayleave through the said three pieces of ground and the existing river walls for the purposes of drainage from his remaining land and buildings thereon subject to the condition that all drainage works through the said three pieces of ground and the existing river walls shall be executed at the expense of the first party and at the sight and to the reasonable satisfaction of the second parties' engineer (F) All the existing rights of river frontage and other rights of the first party in respect of the three pieces of ground herein-before described shall attach and apply to the first party's remaining lands and the new or altered frontage of the river in the same manner and

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to the same effect as such rights attached and applied to the said three pieces of ground and the frontage of the river at the passing of the said Act.

Fifth The following provisions shall subject to the other stipulations of this agreement have effect with respect to the carrying out of the construction of the said river walls and the widening of the river viz. (A) The said three pieces of ground shall be used by the second parties solely for the purpose of widening the River Clyde and the erection of the said River Walls (Nos. 1 2 and 3) (B) The second parties shall as and when they construct the said river walls clear away the said three pieces of ground and when carrying out that operation they shall (first) make reasonable temporary provision to avoid any interference with the free discharge of the drainage from the first party's lands and buildings during the progress of their operations and (second) allow the first party or his foresaids at their own cost to remove the turf from the said three pieces of ground above described and to stack the same on their adjoining lands for their own use (C) In the event of the second parties without being called upon by the first party or his foresaids commencing the construction of River Wall (No. 1) (number one) they shall except as herein-after provided proceed continuously with the construction of the said River Wall (No. 1) and the widening of the river in front thereof and complete the same within nine months from the date of the commencement thereof unless prevented by rock or other unforeseen cause (D) The second parties shall be entitled to construct so much of the said River Wall (No. 1) as extends for a distance of two hundred yards on each side of the junction of the south bank of the River Clyde with the east bank of the River Cart and carry out the widening of the river in front thereof without being under any obligation to complete at the same time the remainder of the said River Wall (No. 1) and widening in front thereof (E) The second parties shall carry out the construction of the new River Walls (Nos. 2 and 3) and the widening of the river in front thereof in such a manner that the access to Algies Gullet shall not be closed up or made less accessible than at present.

Sixth The sale of the said three pieces of ground shall in no way limit or prejudice the rights of the first party or his foresaids as riparian owners or their right of access to the river and they shall be entitled to open or make breaches in the new river walls for the purpose of forming launching ways or slips fitting-out basins graving docks and fitting-out wharves in connexion with any shipbuilding and ship-repairing yards and engineering and other similar works which may be constructed on their lands adjoining such river walls subject only to the provisions contained in section eighty-six of the Clyde Navigation Consolidation Act 1858 in so far as the same are consistent with the provisions of this article and to the following provisions viz. (A) The construction of the said works so far as affecting the undertaking of the second parties shall be carried out to the reasonable satisfaction of their engineer for the time being in accordance with plans to be submitted

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to and reasonably approved of by him and in the event of any difference of opinion in accordance with plans to be approved by and at the sight and to the satisfaction of a neutral engineer to be appointed by the sheriff of Renfrew and Bute on the application of either party and the first party and his foresaids shall thereafter be bound to maintain the same so far as affecting the navigation of the River Clyde in good and sufficient repair to the satisfaction of such engineer or engineers (B) The first party or his foresaids shall at their own expense carry out all dredging and excavation required for giving and maintaining access from the River Clyde to the said intended works and these works shall be so constructed maintained and used as not at any time to obstruct or interfere with the water way or channel of the River Clyde and the other objects of the second parties' undertaking So far as the operations of the first party or his foresaids shall necessitate the removal of the river wall the stone facing of the portion of the river bank so affected shall be handed over to the second parties by the first party or his foresaids and placed by him or them upon punts provided for the purpose by the second parties (C) Any launching ways or slips shall not project into the River Clyde more than twenty feet from a line ranging with the top of the cope of the river wall then existing (D) No vessels boats rafts or timber shall be berthed or moored alongside the river frontage of the lands belonging to the first party so as to project beyond the line of the top of the cope of the river wall (E) All persons and vessels entering or leaving the said basins graving docks or works shall in using the River Clyde be subject to the byelaws and regulations of the second parties in force for the time (F) The first party and his foresaids shall pay to the second parties upon all vessels arriving at or departing from the said basins graving docks or works and upon all rateable goods or materials brought thereto by water for use in connexion with the said works and also upon all machinery materials and goods manufactured there and despatched by water the statutory dues on vessels and goods levied for the time being by the second parties for that stage of the river and shall produce to their collector at his head office on each arrival and before each departure a bill of lading manifest or other certificate showing the true weight or measurement of all goods so received or despatched or such other evidence as shall be satisfactory to the second parties but no lying-up dues shall be chargeable on any vessel so long as it remains in or at the fitting-out basins or wharves of the first party or his foresaids (G) All vessels entering or leaving the said works shall be so navigated by the first party and his foresaids as to avoid so far as practicable the necessity for turning them in the River Clyde at any time opposite or near to the said works and the movements of vessels entering or leaving the works of the first party or his foresaids shall if and when the second parties require it be regulated and controlled by such regulations and signalling arrangements as they may under their statutory powers prescribe which shall be provided and worked by or at the expense of the first party and his foresaids in accordance with such regulations as may be prescribed as

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aforsaid from time to time by the second parties Provided that this provision shall not affect the second parties' byelaws with reference to launching vessels on the River Clyde (H) The first party and his foresaids shall be bound to make good any damage done to the second parties' works or property by the first party or his foresaids or his or their servants contractors or others for whom he or they are responsible during the construction of the said intended works or through the use of the same.

Seventh The whole of the provisions of clauses fourth fifth and sixth hereof shall be inserted in the conveyance following on the notice to treat after-mentioned as real burdens reservations and servitudes in favour of the first party and his foresaids affecting the said three pieces of ground and the first party shall agree to the provisions of article sixth hereof being constituted a real burden on the land adjoining the said three pieces of ground.

Eighth In respect the first party is a limited owner the second parties shall take all necessary legal and statutory proceedings under the Entail Acts and the Clyde Navigation Acts including the Act following on the said Bill and the Acts incorporated therewith to enable the first party or his successors to grant a valid conveyance of the subjects and the first party or his successors shall take all the necessary legal and statutory procedure under the Entail Acts incumbent on them for the same purpose.

Ninth The moneys due under these presents shall be deposited in bank as at the date of giving notice to treat under said Acts which notice shall be given within two months from the passing of the said Bill into an Act failing which interest shall run and be payable on the said moneys at the rate of four per centum per annum from the date of said notice to treat till deposit and both parties bind themselves to enter into and execute all deeds and writings of whatever kind necessary for making these presents effectual.

Tenth Notwithstanding the provisions of articles eighth and ninth hereof the second parties shall be bound if required by the first party before the said moneys have been deposited in accordance with article ninth hereof and on his giving a valid conveyance of the said three pieces of ground consistently with the provisions of the deed of entail of Blythswood to pay the moneys due under these presents to the first party as at the date of giving notice to treat with interest at the rate of four per centum per annum from the date of said notice to treat till payment.

Eleventh On signature of this agreement by both parties the first party shall withdraw his petition against the said Bill.

Twelfth The whole expenses of the first party and his foresaids of and incident to this agreement including all nominations of, valuers references conveyances searches deeds of restriction and all other deeds or documents and including the expenses of uplifting the moneys

to be consigned as aforesaid (but excepting engineering expenses and all expenses in connexion with the first party's petition against the said Bill) shall be borne by the second parties. A.D. 1904. ---

Thirteenth In the event of any disputes or differences of opinion arising between the parties under this minute of agreement the same shall be and are hereby referred to the amicable decision final sentence and decree arbitral of John Jackson Coats writer Glasgow whose decision shall be final and binding on the parties.

Lastly It is hereby declared that this agreement is made subject to such alterations as Parliament may think fit to make therein and that if any material alteration be so made therein it shall be competent to either party thereto to withdraw from the same.

In witness whereof these presents printed on this and the six preceding pages are together with the relative plan before referred to executed in duplicate as follows viz. They are subscribed by the said Baron Blythswood at Dunally Shepperton-on-Thames on the second day of July nineteen hundred and four before these witnesses George Ranken Askwith barrister-at-law one hundred and nineteen Saint George's Square London S.W. and Cecil Stratford Paget (subscribing "Cecil Paget") esquire of Geddington Priory Kettering and they are subscribed on behalf of the Trustees of the Clyde Navigation by Sir John Ure Primrose Baronet Lord Provost of Glasgow and Nathaniel Dunlop shipowner there two of their number and Thomas Riach Mackenzie their general manager and secretary and sealed with their common seal all at Glasgow on the fifth day of said month of July and year last mentioned before these witnesses William Murray Alston their engineer-in-chief and Duncan Mackinnon Macintyre assistant to the said Thomas Riach Mackenzie Declaring that this testing clause from and after the words "In witness whereof" is written by William Gibson clerk to Robert Summers Smith writer Glasgow.

(Signed) G. R. ASKWITH

(Signed) BLYTHSWOOD.

Witness.

„ CECIL PAGET Witness.

„ W. M. ALSTON Witness.

„ D. M. MACINTYRE

Witness.

„ JOHN URE PRIMROSE

Trustee.

„ NATH^L. DUNLOP

Trustee.

„ T. R. MACKENZIE

Secy.

Seal.

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THE SECOND SCHEDULE.

MINUTE OF AGREEMENT AND SALE between WILLIAM ARTHUR BAIRD Esquire of Blantyre and Lennoxlove (who and his successors are herein-after called "the first party") of the first part and THE TRUSTEES OF THE CLYDE NAVIGATION incorporated under the Clyde Navigation Consolidation Act 1858 (herein-after called "the second parties") of the second part.

WHEREAS the second parties are promoting in the present session of Parliament a Bill (herein-after called "the Bill") intituled "A Bill to authorise the Trustees of the Clyde Navigation to construct quays wharves and basins at Yorkhill and Merklands and river walls tramways and other works to make further provision with respect to the storage of goods tolls and rates and the borrowing of additional money and for other purposes" And whereas the second parties by the Bill seek authority to construct certain quays wharves and basins at Yorkhill and Merklands and river walls tramways and other works and in particular to make and maintain in the lines and according to the levels shown on the deposited plans and sections relative to the said Bill a series of river walls along the River Clyde and works and conveniences connected therewith and to enter upon take and use such of the lands delineated on the said deposited plans and described in the deposited books of reference as may be required for those purposes And whereas as the Bill was originally framed and deposited the series of river walls sought to be authorised by it as aforesaid included the River Walls Nos. 5 and 7 herein-after described (that is to say):—

A River Wall (No. 5) on the south side of the River Clyde commencing at a point on the west side of the basin at Rashielee Quay seven yards or thereabouts south-westward from the south wall of the River Clyde and terminating at a point twenty-three yards or thereabouts south-westward from the west end of the south wall of the River Clyde and one hundred and seventy-seven yards or thereabouts south-eastward from the north-east corner of the Ferry Lodge at Erskine Ferry; and

A River Wall (No. 7) on the north side of the River Clyde commencing at a point on the north wall of the River Clyde twenty-five yards or thereabouts westward from the mile-post indicating nine miles from Glasgow Bridge and terminating at a point on the said north wall one hundred and thirty yards or thereabouts southward from the junction of the said north wall with the east side of the north pier of Erskine Ferry:

And whereas the second parties by the Bill seek authority to deepen dredge scour cleanse widen alter and improve the River Clyde at and adjoining the said works sought to be authorised as aforesaid and to use or appropriate any materials raised or removed in so doing And whereas the first party

is proprietor of the estates of Erskine and Kilpatrick in the counties of Renfrew and Dumbarton respectively on which the said proposed River Walls Nos. 5 and 7 were intended to be wholly or partly constructed and on or ex adverso of which the said proposed works at and adjoining the said river walls were intended to be carried out And whereas the first party presented a petition to the House of Commons against among other things the power to construct the said River Walls Nos. 5 and 7 and works at and adjoining the same and the second parties in consequence of such opposition excluded the said walls and works from the Bill And whereas the first party being still dissatisfied with the proposals of the Bill on the ground of apprehended injury to him and his estate and other property including his ferries and piers and works connected therewith presented a petition against the Bill in the House of Lords and with a view to removing the first party's objections to the Bill and obtaining the withdrawal of his opposition the following agreement has been entered into whereby the first party agrees to sell to the second parties the ground required for the construction of the said River Walls Nos. 5 and 7 (so far as proposed to be constructed on the first party's lands) and to sell to the second parties the first party's ferries and ferry rights as herein-after more particularly mentioned and whereby the other provisions herein-after contained for the settlement of other questions between the said parties have been arranged Therefore the parties have agreed and hereby agree as follows :—

First The first party agrees to sell and the second parties agree to purchase for the purposes of the construction and maintenance of the said proposed River Walls Nos. 5 and 7 and of the said proposed works at and adjoining the same (first) all and whole those pieces of ground parts of the said estate of Erskine extending in all to 5·727 acres (imperial measure) or thereby and delineated and coloured red on the plan annexed and signed by the parties as relative hereto and (second) all and whole that piece of ground part of the said estate of Kilpatrick extending to 1·15 acres (imperial measure) or thereby and delineated and coloured blue on the said plan reserving always to the first party the whole mines metals and minerals (other than sand clay and stone) in the said pieces of ground first and second before described.

Second The price of the said pieces of ground shall be four thousand one hundred and twenty-six pounds which sum shall together with interest at the rate of four per cent. per annum from and after the first day of August one thousand nine hundred and four (which shall be held to have been the date of the second parties' entry to the said pieces of ground) be payable by the second parties to the first party on the date of the passing of the Act of Parliament confirming this agreement with interest at the rate of four per cent. per annum from and after that date till paid The sums so payable shall include the first party's whole claims for compensation severance or other damages including all claims in respect of the removal of the existing recess or wharf at North Barr which the second parties shall not be bound to replace but shall not include any claims which may be competent to agricultural tenants.

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Third The first party in consideration of the price and other prestations specified in the immediately succeeding article hereof agrees to sell and the second parties agree to purchase (primo) all and whole the first party's established ferry of East Ferry of Erskine on the River Clyde between the lands of Erskine and Kilpatrick described in the first party's titles of the Barony of Erskine as "the passage boats of the East Ferry to and from Kilpatrick with the whole privileges immunities and liberties used and wont pertaining to the same" together with the ferry piers or slips and approaches thereto and waiting room on the south side the ground occupied by the said piers or slips approaches and waiting room together with the steam ferry boat now plying at the said ferry and all rowing boats chains oars anchors spare chains gear and other equipment of the ferry so far as belonging to the first party and all the first party's rights to charge and levy rates tolls or dues in respect of the said ferry or for landing goods cattle or passengers at the said piers and together also with full right of access and egress to and from the ferry piers over the two main roads approaching the same on the south and north sides respectively (so far as the first party can confer such right) and also together with the use of the recesses in connexion with the said ferry as heretofore and all the other rights of the first party appertaining to the said ferry according to use and wont (secundo) the first party's established ferry on the River Clyde between the lands of Erskine and Dumbarton commonly called the "West Ferry" and described in the first party's titles of the Barony of Erskine as "the passage boats of the West Ferry to and from Dumbarton with the whole privileges immunities and liberties used and wont pertaining to the same" together with right of access and egress over the approaches to the said West Ferry so far as the first party can confer such right and the right to levy and charge rates tolls and dues and the whole other ferry rights competent to the first party in the said West Ferry and (tertio) any other ferry rights over the River Clyde belonging to the first party reserving always to the first party all rights of river frontage and other rights in the lands adjoining the East Ferry piers on the north and south sides of the River Clyde so far as not inconsistent with the rights hereby conferred on the second parties as also the Ferry Inn and Ferry Lodge on the south side as also any right which the first party may have of maintaining and using the small pier or jetty recently constructed by the first party on the south side of the river nearly opposite Bowling (allowing the free passage of water through or under the jetty as at present) for the conveyance to and from Bowling from and to the Erskine Golf Course of persons using that golf course Provided that the second parties are not to be held as admitting that the first party has any right to construct maintain and use the said pier or jetty and reserving any right which they may have to call for its removal.

Fourth In consideration of the sale to them of the ferries and other subjects so agreed to be sold to them by the immediately preceding

article the second parties agree (first) to pay to the first party on the date of the passing of the Act of Parliament confirming this agreement the sum of eight thousand five hundred pounds with interest thereon at the rate of four per cent. per annum from the first day of August one thousand nine hundred and four (which shall be held to have been the date of the second party's entry to the subjects agreed to be sold by the immediately preceding article) to the actual date of payment and (second) to provide and maintain in all time after the said date of entry a ferry service for passenger vehicular cattle and goods traffic at the said East Ferry of Erskine at least equal to that now provided by the first party and to fulfil and implement all obligations incumbent on the first party with reference to the maintenance of the boat service on the said East Ferry and to relieve the first party of all such obligations and of all similar obligations incumbent on him in reference to the said West Ferry and the rates or dues chargeable at the said East Ferry shall in no case be higher than those at present chargeable as set forth in the schedule annexed and signed as relative hereto and all exemptions in favour of estate tenants servants and others from ferry and landing rates or dues and also all other privileges in their favour in connexion with the said ferries shall cease as at the expiry or sooner termination of the existing lease of the said East Ferry declaring always that in the event of the second parties deciding to carry out any alterations or works upon the piers or slips of the said East Ferry or approaches thereto or in the river channel at or adjoining the said ferry they shall afford during the continuance of the said works such good and sufficient temporary accommodation at the said ferry and piers or slips and approaches thereto as may admit of the ferry service being carried on as before or as nearly so as may be Provided that the second parties shall not be under any obligation to work unless at their own option any ferry on the Erskine or Kilpatrick Estates other than the said East Ferry and declaring further that in the event of the second parties hereafter shortening or altering the north and south piers of the East Ferry or either of them and of any damage resulting to the first party's foreshore lands or property in consequence of such shortening or alteration any claims which but for the acquisition by the second parties of the ferry rights and other subjects hereby agreed to be sold to them would have been competent to the first party against the second parties in respect of such damage shall not be held to be prejudiced or affected by such acquisition.

Fifth Upon payment of the said prices of four thousand one hundred and twenty-six pounds and eight thousand five hundred pounds with interest as aforesaid stipulated by articles second and fourth hereof but not sooner the first party shall be bound to deliver to the second parties a valid conveyance of (first) the said pieces of ground agreed to be sold by article first hereof free of all feu duties and encumbrances and of all public burdens prior to the said date of entry but subject to the reservation burdens provisions and conditions specified in articles first and seventh hereof and (second) the said ferry rights

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and others agreed to be sold by article third hereof which conveyance shall be granted under exception from the warrandice of the leases of the said pieces of ground and the leases of the ferry rights and of any servitudes in favour of third parties affecting the same or any part thereof however constituted declaring always that the proportion applicable to the said East Ferry hereby agreed to be sold of the cumulo rent of one hundred pounds now payable to the first party in respect of the said ferry and the Ferry Inn bowling green and grazing on the east side of the south quay shall during the currency of the said existing lease be sixty pounds and that the first party shall be bound on payment of the said prices of four thousand one hundred and twenty-six pounds and eight thousand five hundred pounds and interest as aforesaid to account to the second parties for the proportion of the said rent of sixty pounds and of the annual rent received by the first party for the pieces of ground hereby agreed to be sold applicable to the period from the said date of the second parties' entry.

Sixth The second parties shall settle and free and relieve the first party of all claims (other than for abatement of rent) competent to the agricultural tenants of the several subjects agreed to be sold by article first hereof in respect of the acquisition of such subjects by the second parties but the second parties shall not be bound to make compensation in respect of any exemptions and privileges which the first party's tenants may enjoy in connexion with the said ferries.

Seventh Notwithstanding anything herein-before contained the following provisions shall have effect and apply to the said pieces of ground agreed to be sold by article first hereof and to the proposed River Walls Nos. 5 and 7 (herein-after called "the new river walls") to be erected thereon and shall be inserted and constituted real burdens in the conveyance of the said pieces of ground to be granted and delivered in pursuance of article fifth hereof viz. :—

(1) The second parties shall not construct the new river walls otherwise than on the line delineated on the said deposited plans nor to a greater height than as shown on the said deposited sections except with the consent in writing of the first party ;

(2) The second parties shall not construct on the said pieces of ground or any of them any buildings or erections or other works other than light towers beacons dolphins tide gauges mile posts and the like except with the consent in writing of the first party and any such works shall not be placed further inland than the line of the new river walls as delineated on the said deposited plans and the same shall from time to time be removed by the second parties to other suitable positions when such removal is necessary for the purpose of giving the first party or his successors or his or their disponees or tenants direct access to the river ;

(3) The new river walls so far as above low-water level of ordinary spring tides shall be constructed in accordance with the cross sections shown on the said deposited plans and shall otherwise

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be similar to those at present existing on the River Clyde and the second parties shall restore and provide efficient outlets for any drains now existing or hereafter made which may be interfered with in making or maintaining the new river walls or in removing the soil between the same and the existing river channel ;

(4) In the event of the first party appropriating using selling feuing or letting any land abutting on the said pieces of ground or any part thereof for a purpose for which direct communication with the river is necessary or advantageous before the construction of the new river wall thereon and the removal of the soil between the same and the existing river channel as after mentioned the second parties shall upon receiving written notice from the first party construct with all reasonable despatch so much of the new river walls and remove so much of the soil between the new river walls and the existing river channel as may be necessary in order to provide at least the same depth of water ex adverso of the new river walls as existed ex adverso of the former river walls ;

(5) Until the completion of the new river walls and the removal of so much of the soil between the same and the existing river channel as may be necessary to provide at least the same depth of water ex adverso of the new river walls as existed ex adverso of the former river walls the first party shall enjoy full free and unrestricted access to the river for all purposes in through and over the said several pieces of ground ;

(6) All the existing rights of river frontage and other rights of the first party as the owner of lands of which any part is acquired by the second parties under this agreement for the purposes of the new river walls shall attach and apply to the first party's remaining lands and the new or altered frontage of the river in the same manner and to the same effect as such rights attached and applied to the first party's lands and the existing frontage of the river at the time of the granting of these presents ;

(7) Nothing in this agreement shall prejudice or affect any of the rights vested in or exerciseable by the first party under the provisions contained in section 86 of the Clyde Navigation Consolidation Act 1858 which rights shall apply to the new river walls and these provisions and all other provisions in the Clyde Navigation Acts in favour of the owners for the time being of Erskine and Kilpatrick estates so far as applicable and not inconsistent with these presents shall apply to the first party as fully and completely in all respects as if this agreement had not been made.

Eighth The second parties agree to pay to the first party and the first party agrees to accept on the date of the passing of the Act of Parliament confirming this agreement the sum of two thousand five hundred pounds with interest at the rate of four per cent. per annum from the said first day of August one thousand nine hundred and four in full settlement of all claims competent to him and his predecessors in the said estates of Erskine and Kilpatrick on whose behalf the first

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party takes burden upon himself for loss of land erosion or injurious affection of the lands of Erskine and Kilpatrick eastward and westward of the said East Ferry occasioned up to the said last-mentioned date by or in consequence of the second parties' operations but reserving always to the first party all claims which may be competent to him in respect of damage which may at any time after the said date be caused to his lands foreshore and property or any part thereof by or in consequence of the second parties' operations whether before or after the said date and reserving to the second parties all answers and defences to the said last-mentioned claims.

Ninth Whereas the first party has raised a question as to the extent to which the second parties are entitled under the powers of their existing Acts of Parliament to deepen the River Clyde within the lateral limits defined in the Parliamentary plans and in the second parties' Acts the first party contending that the second parties are not entitled to deepen the river as aforesaid to a greater depth than seventeen feet below high water of neap tides and the second parties maintaining that they are so entitled the first party hereby abandons and departs from the said contention and undertakes not to proceed with or institute any action or legal proceedings against the second parties founded upon such contention.

Tenth The second parties shall pay and so free and relieve the first party of the whole expenses of and incident to this agreement and the expenses of all conveyances and other deeds to follow hereon including deeds of restrictions necessary to free and relieve the subjects hereby agreed to be sold from any incumbrances affecting the same and which may be required by the second parties and in case of difference between the parties as regards all or any of the expenses referred to in this article the amount thereof shall be ascertained and taxed by the auditor of the Court of Session.

Eleventh In the event of any difference arising between the parties hereto in regard to this agreement or the implement thereof such difference shall be determined by an arbiter to be mutually appointed by the parties or failing agreement to be appointed on the application of either party by His Majesty's Secretary of State for Scotland and the decision of the said arbiter shall be final and binding on the parties.

Lastly Both parties shall use their best endeavours to obtain Parliamentary confirmation to this agreement This agreement is made subject to such alterations as Parliament may see fit to make thereon but should any alteration be so made which in the opinion of the said Secretary for Scotland whom failing of the Lord Advocate is material hereto it shall be competent to either of the parties to withdraw or resile therefrom.

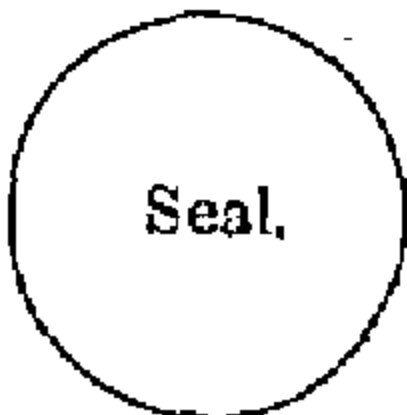
In witness whereof these presents printed on this and the seven preceding pages are (along with the foresaid plan and schedule of dues both annexed hereto) executed in duplicate by the parties hereto as follows viz. They are subscribed for the Trustees of the Clyde Navigation by Sir John Ure Primrose Baronet Lord Provost of Glasgow and Nathaniel Dunlop shipowner

Glasgow two of their number and Thomas Riach Mackenzie general manager and secretary to the said Trustees and sealed with the common seal of the said Trustees all at Glasgow on the 22nd day of July 1904 before these witnesses William Johnstone writer Glasgow and Duncan Mackinnon Macintyre assistant to the said Thomas Riach Mackenzie and they are subscribed by the said William Arthur Baird at Dunbar on the twenty-fifth day of the month and year both last-mentioned before these witnesses Samuel Strang Steel Philiphaugh Selkirk and the Right Honourable William George Montague Hay Earl of Gifford this testing clause from and after the words "In witness whereof" being written by Robert Laidlaw Collier clerk to Messrs. Dundas and Wilson clerks to the Signet Edinburgh.

S. STRANG STEEL Witness.
GIFFORD Witness.
W. JOHNSTONE Witness.
D. M. MACINTYRE Witness.

W. A. BAIRD.

JOHN URE PRIMROSE
Trustee.
NATH^L. DUNLOP Trustee.
T. R. MACKENZIE General
Manager and Secretary.



SCHEDULE OF DUES REFERRED TO IN THE FOREGOING
MINUTE OF AGREEMENT.

	£	s.	d.
Foot passengers crossing - - - - - each	0	0	1
Do. do. to or from steamboat - - - each	0	0	2
Cow or other beast up to four - - - each	0	0	3
Do. do. above four - - - - - each	0	0	2
Sheep under a score - - - - - each	0	0	1
Do. per score - - - - - - - - - -	0	1	0
Horse and rider - - - - - - - - - -	0	0	4
Do. gig - - - - - - - - - - - - - -	0	0	6
If carrying more than one person for each additional passenger	0	0	1
Four-wheeled carriage with one or two horses - - - - -	0	1	0
Do. do. four horses - - - - - - - -	0	1	6
Caravan with one or two horses - - - - - - - - - -	0	2	0
Do. three or four horses - - - - - - - - - -	0	3	0
Do. more than four horses - - - - - - - - - -	0	5	0

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						£	s.	d.
Any cart and horse and driver where weight of cart and loading								
does not exceed 25 cwt. - - - - -						0	0	6
Do.	do.	exceeds 25 cwt. but does not exceed 30 cwt.				0	0	9
Do.	do.	30 cwt.	do.	35 cwt.		0	1	0
Do.	do.	35 cwt.	do.	40 cwt.		0	1	6
Do.	do.	40 cwt.	do.	45 cwt.		0	2	0
Do.	do.	45 cwt.	do.	50 cwt.		0	3	0
Do.	do.	50 cwt.	do.	55 cwt.		0	5	0
Bicycles or tricycles - - - - - each						0	0	3

THE THIRD SCHEDULE.

MINUTE OF AGREEMENT between GEORGE WILLIAM HENDERSON of Park in the Parish of Inchinnan and County of Renfrew (herein-after called "the first party") of the first part and THE TRUSTEES OF THE CLYDE NAVIGATION incorporated under the Clyde Navigation Consolidation Act 1858 (herein-after called "the second party") of the second part.

WHEREAS the second party is promoting in the present session of Parliament a Bill for an Act which inter alia recites that the trade and commerce of the Harbour of Glasgow and the number and size of the vessels resorting thereto have increased and are increasing and it is expedient that the Trustees should provide further accommodation to meet the present and prospective demands of such trade and commerce and that they should with this view be authorised to widen the River Clyde and to construct inter alia a River Wall (No. 4) on the south side of the River Clyde commencing at a point on the east side of Park Quay fifty yards or thereabouts southward from the north-west corner of that quay and terminating at a point on the south wall of the River Clyde one hundred and fifty-two yards or thereabouts westward from Rashielee Light Tower And whereas the first party is proprietor of the lands and estate of Park upon part of which the said river wall is proposed to be constructed and which part the second party are in the said Bill taking powers to acquire under the provisions of the Lands Clauses Acts And whereas the first party deposited a petition against the Bill but the second party having made proposals for the protection of his lands and estate he has agreed to sell and the second party has agreed to purchase the land required for said purpose and authorised to be taken by the said Act And he has agreed on the terms and conditions herein-after written to withdraw his opposition to the said Bill and to consent to the same being passed into an Act Now therefore these presents witness that the parties have agreed and do hereby agree and bind and oblige themselves as follows viz. :—

First The first party agrees to sell to the second party and the second party agrees to purchase for the said river wall and for the widening

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of the River Clyde all and whole that piece of ground forming part of the first party's lands and estate of Park situated on the south bank of the River Clyde in the parish of Inchinnan and county of Renfrew containing one acre and seventy-five decimal parts of an acre or thereby and shown in red colour on the plan docketted and subscribed as relative hereto and that free of all feu duty and other incumbrances affecting the said piece of ground but under reservation to the first party and his heirs and successors in the said estate of Park of the whole mines metals and minerals other than clay sand or stone in and under the said piece of ground.

Second The second party shall within six months from the date on which the said Bill receives the Royal Assent (which date shall be the second party's term of entry) pay to the first party or his foresaids in exchange for a valid conveyance of the said piece of ground the sum of one thousand pounds sterling and the second party shall also at the same time pay to the first party an additional sum of one thousand one hundred pounds sterling in full satisfaction of all his claims in respect of the cutting off and shortening of Park Quay and Basin authorised by the said Act and subject to the provisions herein-after contained of any damage which may be done by the construction of the works authorised by the Act to that quay and basin.

Third The said two sums of money payable under this agreement to the first party shall be in full satisfaction to the first party and his successors in the estate of Park of all claims competent to him or to the tenant of the said lands for compensation in respect of the lands so purchased the alteration of Park Quay and Basin and of severance and other damage and injury to the amenity of the first party's lands and estate of Park but there is hereby reserved to the first party and his foresaids all claims competent to him against the second party for any damage which may be caused by the construction of the works and the carrying out of the operations authorised by the Act or any of them to Rashielee Quay and Basin and the other lands or buildings abutting on the River Clyde belonging to him.

Fourth For the protection of the rights of the first party and his foresaids as riparian owners the following provisions shall have effect viz. :—

(A) The second party shall not under the powers contained in the said Act take any other portion of the first party's lands than that which is hereby agreed to be sold to them and they shall not deviate further inland than the northern edge of the line of the new River Wall (No. 4) as delineated on the deposited plans relative to the said Bill nor construct the new river wall to a greater height than as shown on the deposited sections except with the consent in writing of the first party ;

(B) The second party shall not construct on the piece of ground acquired under this agreement any buildings or erections other than light towers beacons dolphins tide gauges mile posts and the like except with the consent in writing of the first party or his foresaids and any such works shall not (with the exception of Rashielee Light

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Tower) be placed further inland than the northern edge of the line of the new river wall as delineated on the deposited plans and the same shall from time to time be removed by the second party to other suitable positions when such removal is necessary for the purpose of giving the first party or his foresaids or his or their disponees or tenants direct access to the river ;

(C) The second party shall pitch or otherwise suitably protect with a facing of stone similar to the existing river walls the new or altered bank of the river formed by them on the land acquired from the first party and shall maintain such new river wall and protection works in all time thereafter and the second party shall restore and provide efficient outlets for any drains which may be interfered with in making or maintaining the new river walls or in removing the soil between the same and the existing river channel ;

(D) Until the said widening has been completed ex adverso of the lands of the first party the second party shall not fence or exercise tillage and grazing rights over the surface of the land acquired by them from the first party ;

(E) In the event of the first party or his foresaids appropriating using selling feuing or letting any portion of his remaining lands abutting on the said piece of ground acquired from him for a purpose requiring direct communication with the river after the second party shall have acquired the said piece of ground under this agreement but before the construction of the new river wall thereon and the removal of the soil between the same and the existing river channel as after-mentioned the second party shall upon receiving written notice from the first party or his foresaids construct with all reasonable despatch so much of the new river wall and remove so much of the soil between the new river wall and the existing river channel as may be necessary in order to provide at least the same depth of water ex adverso of the new river wall as existed ex adverso of the former river wall ;

(F) After the second party shall have acquired the said piece of ground under this agreement but before the construction of the new river wall the first party shall have and enjoy a right of wayleave through the said piece of ground and the existing river wall for the purposes of drainage from his remaining lands and buildings thereon subject to the condition that all drainage works through the said piece of ground and the existing river wall shall be executed at the expense of the first party and at the sight and to the reasonable satisfaction of the second party's engineer ;

(G) All the existing rights of river frontage and other rights of the first party in respect of the piece of ground herein-before described shall attach and apply to the first party's remaining lands and the new or altered frontage of the river in the same manner and to the same effect as such rights attached and applied to the said piece of ground and the frontage of the river at the passing of the said Act.

Fifth The following provisions shall subject to the other stipulations of this agreement have effect with respect to the carrying out of the construction of the said river wall and the widening of the river namely :—

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(A) The said piece of ground shall be used by the second party solely for the purpose of widening the River Clyde and the erection of the said river wall but the second party shall be entitled to set back and re-erect Rashielee Light Tower so that it shall occupy the same position with reference to the new river wall as it occupies to the existing river wall They shall however be bound to move it to some other suitable site if it be found to interfere with the use and development of the first party's lands ;

(B) The second party shall as and when they construct the said river walls clear away the said piece of ground and when carrying out that operation they shall (first) make reasonable temporary provision to avoid any interference with the free discharge of the drainage from the first party's lands and buildings during the progress of their operations and (second) allow the first party or his forebears at their own cost to remove the turf from the said piece of ground above described and to stack the same on their adjoining lands for their own use ; and

(C) The second party shall carry out the construction of the said new river wall and the widening of the river in front thereof in such a manner that the access to the remaining portion of Park Quay and Basin shall not be closed up They shall construct the northern face of the said quay in the line of the new river wall so as to be as nearly as possible of the same character as the existing northern face of the said quay but the second party shall not be responsible for the maintenance of the said northern face or of the said quay and basin.

Sixth Nothing in this agreement shall prejudice or affect any of the rights vested in or exercisable by the first party or his forebears under the provisions contained in section 86 of the Clyde Navigation Consolidation Act 1858 which rights shall apply to the new river wall and those provisions and all other provisions in the Clyde Navigation Acts in favour of the owners for the time being of Park Estate so far as applicable and not inconsistent with these presents shall apply to the first party as fully and completely in all respects as if this agreement had not been made.

Seventh The provisions and remedies of this agreement shall not limit or affect the rights or remedies to which the first party is or may be entitled by the said Act or any of the incorporated Acts except in so far as his claims are hereby expressly discharged.

Eighth The whole of the provisions of clauses fourth fifth and sixth hereof shall be inserted in the conveyance to be granted by the first party to the second party as conditions of the grant and as real burdens reservations and servitudes in favour of the first party and his forebears affecting the said piece of ground and the second party's use thereof.

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Ninth The expenses of the first party and his foresaids of and incident to this agreement and of the conveyance to follow hereon (but excepting engineering expenses and all expenses in connexion with the first party's petition against the said Bill) shall be borne by the second party.

Tenth In the event of any dispute or difference of opinion arising between the parties under this minute of agreement the same shall be referred to an arbiter to be agreed upon between them or in case of difference to be appointed on the application of either party by the Sheriff Principal of Lanarkshire.

Lastly This agreement shall be scheduled to and confirmed by the said Act and shall be subject to such alterations as may be made therein during the progress of the Bill but if any material alteration be so made in it it shall be competent to either party thereto to withdraw the same.

In witness whereof these presents typewritten on this and the six preceding pages are together with the relative plan before referred to executed in duplicate by the parties hereto as follows viz. They are subscribed for the Trustees of the Clyde Navigation by Nathaniel Dunlop shipowner Glasgow and David Robert Clark corn factor Glasgow two of their number and Thomas Riach Mackenzie their general manager and secretary and sealed with their common seal all at Glasgow on the twenty-ninth day of July nineteen hundred and four before these witnesses William Murray Alston their engineer-in-chief and Duncan Mackinnon Macintyre assistant to the said Thomas Riach Mackenzie and they are subscribed by the said George William Henderson at Sedgwick Park Horsham on the first day of August and year last mentioned before these witnesses Emma Caroline Henderson widow and Isabella Eleanora Henderson spinster both of Sedgwick Park Horsham aforesaid Declaring that this testing clause from and after the words "In witness whereof" is written by Alexander Gordon Rowsell clerk to Messieurs Martin and Leslie Parliamentary agents 27 Abingdon Street Westminster.

EMMA C. HENDERSON Witness.

ISA. E. HENDERSON Witness.

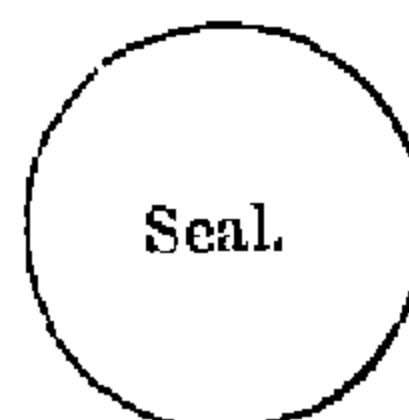
W. M. ALSTON Witness.

D. M. MACINTYRE Witness.

GEO. W. HENDERSON.

NATH^L. DUNLOP Trustee.

DAVID R. CLARK Trustee.

T. R. MACKENZIE General
Manager and Secretary.

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